



COMPANY POLICY · ADDENDUM A

DOT / US Drug & Alcohol Clearinghouse Policy

CPC Logistics Canada · Effective January 6, 2020 · US DOT 49 CFR Part 382.7

Overview

To: All CPC US drivers. Scope: all CPC US DOT / FMCSA-regulated drivers. This addendum sets out how CPC administers the US DOT Drug & Alcohol Clearinghouse program for cross-border commercial driving.

Additional Terms

Limited Query

A limited query allows an employer to determine whether a driver has a policy violation or an unresolved return-to-work program on file in the Clearinghouse. Limited queries do not release any specific violation information from the driver's Clearinghouse record and require only a general driver consent.

Full Query

A full query requires the driver's specific consent to release information stored in the Clearinghouse to a specific individual or organization at a particular point in time. For full queries, electronic consent is required each time.

Third-Party Administration

The Company has contracted with US DOT-certified Medical Review Officers (MRO) and a Third-Party Administration (TPA) provider to manage the Company's compliance requirements regarding the US DOT Clearinghouse program.

Pre-Employment (Full Query) Background Checks

Before operating a commercial motor vehicle (CMV) in the United States, the Company must conduct a background check in the US DOT Clearinghouse portal. The purpose is to identify whether a driver applying for a US DOT CMV position has an outstanding positive drug-test result or other Part 382 policy violation on file.

Prior to conducting the full-query background check in the Clearinghouse portal, the applicant must provide electronic consent on the Clearinghouse website.

If the applicant refuses to provide consent, the Company must not permit the driver to operate a CMV in the USA for the Company. This refusal is not considered a reportable Part 382 violation, and no further action is required.

If the full query indicates the applicant has a positive result or policy violation on file, the Company will provide the applicant with contact information for a US DOT-certified Substance Abuse Professional (SAP). Under this policy, the applicant is responsible for the cost of any assessments and subsequent education and/or treatment.



If the full query indicates an unresolved return-to-work program on file, the Company will request information from the previous employer. Written consent from the applicant is required before the previous employer can release information related to the violation. The Company remains responsible for ensuring the remaining follow-up tests are completed within the SAP-recommended timeframe; the associated additional testing costs are the responsibility of the successful candidate.

Reporting of Positive Results, Policy Violations & Return-to-Work Documents

The Company's designated MRO must report all declared positive drug results and substituted or adulterated samples to the Clearinghouse within two business days of the Company being notified of the result.

The TPA, on behalf of the Company, reports all other reportable documents to the Clearinghouse. These include negative return-to-duty results, and 49 CFR Part 382 actual-knowledge violations such as impaired-driving charges while operating a CMV, refusals to test, and positive alcohol results of 0.04 or greater.

Any results reported to the Clearinghouse can be challenged by the driver or applicant, but it is the responsibility of the driver or applicant to manage that challenge.

Following successful completion of the SAP assessment process, the SAP reports the SAP program documentation to the employer and to the Clearinghouse. It is the responsibility of the driver or applicant to register their SAP in the Clearinghouse portal under their profile so the paperwork is uploaded and a return-to-duty test can be conducted.

Background Checks on the Current Driver Pool

The Company must, at minimum, conduct a Clearinghouse background check for all current US DOT-regulated CMV drivers on an annual basis. The Company must obtain a signed limited-query consent form from each active driver, valid for the duration of the driver's employment, before conducting a limited query. If a driver refuses to sign the limited-query consent form, the Company may no longer allow the driver to operate a CMV in the USA for the Company.

If, during a limited query, the Clearinghouse produces a notification that there is a file to be reviewed, the Company has 24 hours to obtain the driver's electronic consent on the Clearinghouse website. If the driver does not, or is unable to, provide consent within 24 hours of the limited-query report, the driver must be put out of service until consent has been given and the report has been received, reviewed, and resolved.